

HEADNOTE

“1. The patent claim is always to be interpreted from the point of view of a person skilled in the art. Additionally, the skilled person is taking the purpose of every patent claim into account, to provide the average person skilled in the art with a technical teaching which, when reworked, leads to the intended success of the invention.

2. The court must be convinced of the validity of a patent in suit with a sufficient degree of certainty. A decision on provisional measures cannot be based solely on the court's view of the validity of the patent in suit, but also on the likelihood that the opposition division of the EPO will revoke the patent.”

COURT
Local Division in Hamburg

PROCEEDINGS
Procedural order

PATENT
EP3167888

TREATMENT OF PAROXYSMAL
NOCTURNAL HEMOGLOBINURIA
PATIENTS BY AN INHIBITOR OF
COMPLEMENT

KEYWORDS

Preliminary injunction

Art. 62(2) UPCA

Rule 209(2) RoP

Validity of patent

Degree of certainty

Art. 62(4) UPCA

Rule 211.2 RoP

SUMMARY

The Local Division in Hamburg issued a procedural order. The patent at issue relates to the treatment of paroxysmal nocturnal hemoglobinuria patients by an inhibitor of complement. According to the headnotes of the decision, patent claims must always be interpreted through the lens of a person skilled in the art who considers the purpose of each claim to ensure it provides a technical teaching that achieves the invention's intended result. When assessing whether to grant provisional measures, courts must be sufficiently convinced of a patent's validity, but they must also account for the likelihood that the EPO's opposition division may revoke the patent during parallel proceedings.